



Appeal Decision

Site visit made on 4 August 2026

by N Bowden BA(Hons) Dip TP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 28th August 2026

Appeal Ref: 6011520

Greensleeves, School Lane, Bricket Wood, Hertfordshire AL2 3XS

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr James Munelly against the decision of St Albans City & District Council.
 - The application Ref is 5/2026/0202.
 - The development proposed is demolition of the rear covered verandah, a full-width single-storey rear extension, garage conversion, modest front extensions, alterations to the roof including Dutch gables and rear dormers, and improvements to the existing in-out driveway.
-

Decision

1. The appeal is dismissed.

Preliminary Matters

2. A revised National Planning Policy Framework (the Framework) was published on 17 August 2026. As the changes to the Framework could be considered material to the outcome of the appeal, I consulted the parties in relation to this and have taken their comments into account in my decision here.
3. The Council have identified conflicts with policies of the replacement Local Plan in its decision notice and this is in relation to all three reasons for refusal. However, as this document has not been adopted as forming part of the development plan, I cannot afford these policies significant weight in reaching my conclusions here. In any case, even if I were to regard these policies as having full weight, this would not have altered my conclusions in this decision.

Main Issues

4. The main issues are:
 - 1) The effect of the proposed development on bats as a protected species,
 - 2) Whether the proposal would be inappropriate development in the Green Belt having regard to the Framework and relevant development plan policies, and
 - 3) Whether the proposed development would preserve or enhance the character or appearance of the Old Brickett Wood Conservation Area (CA).

Reasons

Protected species

5. The appellant has advised that a Preliminary Roost Assessment (PRA) has been commissioned to assess the impact of the proposal on bats. However, no such PRA was provided with the appeal. Indeed, even if a PRA was provided, this may not have been accepted as it would amount to new evidence and this would conflict with the Procedural Guide: Planning appeals – England¹. Whilst the Council may have determined the application whilst the PRA was being reviewed, this is not a matter for me to consider here as I must determine the appeal based on the information before me.
6. The Council's ecologist has indicated that due to the site's setting within semi-natural habitat and evidence of bats making use of similar properties nearby that the property has the potential to contain bats. Given the site's location I have no reason to disagree with these findings.
7. As such, I must conclude that in the absence of any evidence to indicate that bats are not present, the proposal conflicts with policy 106 of the St. Albans District Local Plan Review 1994 (StALP) and Framework as it does not take account of ecological factors.

Effect on Green Belt

8. The proposal relates to a detached bungalow which sits amongst a small row of similarly styled bungalows and older two storey cottages along this side of the road. The proposal seeks permission to form a single storey rear extension across the full width of the rear of the dwelling, form two gable build ups within the context of the existing hipped roof and create two projecting dormer windows/extensions towards the rear. This is in addition to additional roof lights in the front roof slope.
9. The appeal site is located within the Metropolitan Green Belt where, as explained at policy GB6 1. of the Framework, development in the Green Belt is inappropriate unless it falls within one of the categories in policy GB7. Policy GB7 1. sets out that certain categories of development are not inappropriate in the Green Belt and therefore should not be regarded as harmful to the Green Belt or be required to demonstrate very special circumstances. This includes policy GB7 1. b. which states that (in summary) the extension, alteration or replacement of an existing building [is not inappropriate], provided that the existing building is of permanent and substantial construction, is lawful in planning terms, and any extension or alteration will not result in a disproportionate increase in size compared to the original building.
10. This is not dissimilar to policy 13 of the StALP and the St Albans Residential Extensions and Replacement Dwellings in the Green Belt Supplementary Planning Guidance (GBSPG). Policy 13 of the StALP sets out that (in summary) extensions to houses in the Green Belt may be permitted unless the scale or visual impact upon the building, as originally constructed, would create a building of significantly larger or different character. This is expanded upon in the GBSPG with certain requirements set out relating to rear extensions and roof extensions. For rear extensions this means 90 to 180 cubic metres or 20 to 40% of the floorspace,

¹ For appeals relating to applications dated on or before 31 March 2026. Sections 9 and 16.

whichever is the greater. For roof extensions this means that significantly raising the eaves or increasing the ridge height or bulk of a roof will normally be seen to create a building of different character and therefore be resisted.

11. There is discrepancy between the parties about the size of the original building, previously built extensions and the size of the proposed enlargements in both floorspace and volumetric terms. The parties are in agreement that the existing house is largely as per its original construction. However, there is a detached garage and this appears to be a later addition. The GBSPG explains the Council's approach here to be that existing garages and outbuildings will only be included as part of the original floorspace if they were built at the same time and are integral to the original dwelling. Any such structures built afterwards may be classed as extensions. This is consistent with the approach set out in case law² where it was considered that [paragraph 149(c)]³ is not to be interpreted as being confined to physically attached structures but that an extension for the purposes of that provision can include structures which are physically detached from the building of which they are an extension. As such I must regard the detached garage as an extension to the original building.
12. Despite the differences between the parties floorspace and volumetric calculations, from the evidence provided, it appears that the proposed rear extension is either below the GBSPG limits or only exceeds them by a very minor degree. The alterations to the roof are within the GBSPG limits as the proposal does not raise the eaves or ridge height and the increase in bulk in the roof is modest. The dormer extensions to the rear are slightly more bulky than the side gable build ups, but even so, are still within the footprint of the original dwelling.
13. Furthermore, I must also have regard to the requirements of policy 13 of the StALP relating to the scale or visual impact of extensions upon the building as originally constructed. In this case, I find that the proposal does not result in a building which is significantly larger or different character. Furthermore, I also find that the roof extension is confined to the footprint of the original building and the single storey extension is of a low profile and clearly subordinate to the original building, even considering the existing detached garage.
14. Therefore, whilst there may be some discrepancy between the parties about the dimensions of the increases in size; I have judged the proposal, ultimately, on the visual and spatial effects of the extensions. I have concluded that they are not disproportionate to the original building and therefore are not inappropriate development in the Green Belt. As such, I conclude that the proposal complies with policies 1 and 13 of the StALP and the provisions of the GBSPG and Framework.
15. As I have found the proposal to be not inappropriate development in the Green Belt, it is not necessary for me to go on to further consider the effects on openness.

Effect on CA

16. The site is set within the CA which is tightly drawn around the hamlet of Old Brickett. Old Brickett is formed of a small cluster of buildings in a fairly isolated

² Warwick DC v SSLUHC, Mr J Storer & Mrs A Lowe [2022] EWHC 2145 (Admin)

³ Paragraph 149(c) of an earlier Framework, now replaced by policy GB6/GB7

position amongst much, well established, woodland with sporadic clearings. The CA derives its significance from its setting within the woodland and the mix, yet harmonious, array of buildings set within it that are of interest including as part of their group value. These buildings are, with the exceptions of the Picture House opposite and the Old Fox public house, typically of a modest scale which is consistent with the rural setting. Many buildings date from the 19th century with the appeal site representing one of a few later additions. Even so, Greensleeves and its immediate neighbours are of an appropriate scale to their context and make a small, but positive, contribution to the CA.

17. S72(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 requires that special attention shall be paid to the desirability of preserving or enhancing the character or appearance of that area. Policy HE6 1. of the Framework further sets out that when considering the potential effect of a development proposal on the significance of a designated heritage asset, substantial weight should be given to the asset's conservation.
18. The proposal seeks permission for a single storey extension to the rear and roof alterations. In practice, it is only the alterations to the roof that would be readily noticeable in the CA. These alterations are in the form of two small gable build-ups to the hipped roof that would be visible from the front. The CA has a variety of roof forms in terms of both form and use of materials. The alterations to the roof here would be quite minor and would not result in it appearing as a prominent feature in the street scene.
19. I do accept the Council's observations regarding the alterations to the rear of the existing house. The dormer roof extensions and the flat roof single storey extension would not harmonise with the nature of the roof forms and styles of buildings in the area. Nevertheless, these alterations are set to the rear. They are not dissimilar to other alterations to the rear of neighbouring properties, and these have already been undertaken with negligible to no adverse effects on the character or appearance of the CA.
20. Indeed, policy HE9 2. of the Framework notes that not all elements of a conservation area will necessarily contribute to its significance. Where a development proposal would result in the loss of a building or other element which contributes to the character or appearance of a conservation area that is desirable to conserve, the assessment of impact should take into account the relative significance of the element affected and its contribution to the significance of the conservation area as a whole.
21. I have found that the significance of the CA is derived from its sylvan setting and the arrangement and historic interest of many of its buildings. The proposed alterations and extensions would not have an adverse effect upon this character or appearance and would therefore preserve it. As such, I conclude that the proposal complies with policies 69, 72 and 85 of the StALP and Framework insofar as it enhances or preserves the appearance of the CA.

Other Matters

22. In reaching my conclusions here I have been mindful of the comments of the Highway Authority who raised objection due to the dual (in-out) accesses to the property. However, this situation is an existing one and it appears to me that the alterations to the accesses would enhance the ease with which vehicles can enter

and leave the public highway in a forward gear. This would be either a benefit or neutral in highway safety terms. Moreover, the City & District Council did not express this as a matter of concern in its decision.

Conclusion

23. I have found that the proposal would not result in a disproportionate addition to the original dwelling and would therefore not be inappropriate development in the Green Belt. I have also found that the proposal would preserve the character and appearance of the CA.
24. However, I have insufficient evidence before me to indicate that the proposal would not have an adverse effect upon bats and, therefore, in the absence of a recent survey cannot conclude that the proposal would not be detrimental to this protected species. For this reason, the proposal conflicts with the development plan and the material considerations do not indicate that the appeal should be decided other than in accordance with it.
25. The appeal is dismissed.

N Bowden

INSPECTOR